

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On July 31, 2023, B.B.B. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the DEPARTMENT OF CULTURE, TOURISM AND SPORTS OF THE GOVERNMENT OF CANTABRIA with NIF S3933002B (hereinafter, the respondent).

The grounds for the complaint are as follows:

The claimant was the beneficiary of the award of a contract tendered by the respondent.

On April 4, 2023, the respondent published the announcement of the contract award on the Public Sector Contracting Platform. The aforementioned act includes the name, surname, and full ID number of the claimant.

According to the claimant, the respondent would have violated data protection regulations by publishing the aforementioned data.

Along with the complaint, a printout of the award announcement is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on September 21, 2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on September 22, 2023, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: The complaint was also forwarded to the MINISTRY OF FINANCE AND PUBLIC FUNCTION, responsible for the Public Sector Contracting Platform where the announcement subject to the complaint was published. In response to this procedure, the Ministry informed as follows:

"The contracting bodies are responsible for the processing of personal data of the information and documents they publish on their contracting profiles, as provided in Article 63.1 of Law 9/2017, of November 8, on Public Sector Contracts, which transposes the Directives of the European Parliament and of the Council 2014/23/EU and 2014/24/EU, of February 26, 2014 (LCSP). (...)

Contact has been made with the contracting body to indicate that it should annul the award announcement, modify the NIF of the awardee by obscuring positions four to seven, and republish the announcement. Subsequently, it should formally request the SGCCE to delete the original annulled announcement from the publications area labeled as historical. Finally, regarding the right to be forgotten, it should complete the form that Google has enabled for this purpose to request that the document be de-indexed.

(...) The aforementioned contracting body:

- Did not comply with the instructions issued by the PLACSP for compliance with personal data protection regulations.

- Did not request the PLACSP to obscure the personal data of the aforementioned bidder before publishing the award announcement. Indeed, before publishing announcements in the PLACSP, contracting bodies have a "Preview" button available.

(...) In order not to depend on the diligence of the contracting bodies when following instructions or requesting the PLACSP to obscure personal data, a functionality is being developed in the PLACSP to automatically obscure personal data in the award announcements that are published."

FOURTH: On October 31, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FIFTH: On February 23, 2024, the Director of the Spanish Agency for Data Protection decided to

initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, it expressed the following:

"On September 21, 2023, the complaint was forwarded to the Government of Cantabria for the purpose of informing the Agency within one month.

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This notification from the Agency was recorded in the electronic headquarters of the Government of Cantabria as a general access point, and due to the new organization of the structure of the Government of Cantabria, it was mistakenly sent to the Ministry of Education and Vocational Training, which received it on September 24, 2023.

By mistake, the Ministry of Education did not forward the claim to the Ministry of Culture, Tourism, and Sports through the software application enabled for this purpose in the Government of Cantabria. Therefore, the Ministry of Culture, Tourism, and Sports, competent to rectify the error in the publication of the contested award announcement, was unaware of the claim and could not proceed to resolve it.

According to the agreement to initiate the sanctioning file, the claim was also forwarded to the Ministry of Finance and Public Function, which is responsible for the Public Sector Contracting Platform, and reported the following:

"The contracting bodies are responsible for the processing of personal data of the information and documents they publish in their contractor profiles."

It is indicated that contact has been made with the contracting body to inform them to annul the award announcement, modify the NIF of the awardee..."

Regarding this point, in the Ministry of Culture, Tourism, and Sports, the claimed administration, there is no record of having received communication in order to follow the instructions issued by the Public Sector Contracting Platform (PLACSP) to obscure the personal data of the claimant.

It should be noted in this regard that by means of Decree 6/2023, of July 7, reorganizing the Ministries of the Administration of the Autonomous Community of Cantabria, the structure of the Government has been modified, which has complicated the correct circulation of information in the initial months.

Law 5/2018, of November 22, on the Legal Regime of the Government, Administration, and Institutional Public Sector of the Autonomous Community of Cantabria, in its article 171.3, established that minor contracts would be published in the Official Bulletin of Cantabria on a quarterly basis.

By virtue of Law 5/2019, of December 23, on Fiscal and Administrative Measures, this article was amended with an effective date of January 1, 2020, in the following sense: "minor contracts shall be published in accordance with the regulations on public sector contracts and transparency."

The publication obligations for minor contracts established in Law 9/2017, of November 8, on Public Sector Contracts, and in Law 1/2018, of March 21, on Transparency of Public Activity, are as follows:

Article 63.4 of Law 9/2017, of November 8, on Public Sector Contracts establishes that "the publication of information relating to minor contracts must be carried out at least quarterly. The information to be published for this type of contract shall include, at a minimum, its object, duration, the amount of the award, including the..."

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Value Added Tax, and the identity of the awardee, ordering the contracts by the identity of the awardee”

Art. 27.1 of Law 1/2018, of March 21, on Transparency of Public Activity, expressly includes minor contracts in the obligation of publication on the Transparency Portal: “the publication of information related to minor contracts may be carried out quarterly, and must comply at least with the provisions established in the previous sections, including the different offers that were made.”

The compliance with both information obligations in the Government of Cantabria is carried out through the computer application of the Office of Supervision and Information of Expenditure (OSIG). Decree 2/2017, of February 9, which modifies Decree 80/2012, of December 27, which creates the Office of Comprehensive Supervision of Expenditure of the Autonomous Public Sector of Cantabria, establishes in its article 6.1 f) that it is the function of the Office of Monitoring and Information of expenditure to “provide information in electronic format, on acts of administrative management with economic impact, based on the data from its comprehensive expenditure management information system, to the governing body responsible for directing the necessary actions in matters of institutional transparency and public information of the Administration of the Autonomous Community of Cantabria, so that it proceeds to publish it on the Transparency Portal, if deemed appropriate. At a minimum, the following information will be provided: The contracts, indicating at least the information required by the legislation and regulatory norms on transparency that are applicable to it (...) For the proper exercise of this function, the OSIG may require the managers responsible for the expenditure files to record the necessary information in their comprehensive expenditure management information system.”

Therefore, for the management of the expenditure file, the managers of the file complete the required data in the OSIG, with the complete ID number of the awardee being a mandatory field. Once the request is completed, the manager must complete the SOGI and thus the file is published on the Transparency Portal of Cantabria, with no further intervention from the manager.

Since the year 2020, the OSIG application has been integrated with the Public Sector Contracting Platform. Once the OSIG requests are completed, the personnel of the General Secretariat registered in OSIG with the role of “contracting manager” receive notifications from their hierarchical superiors regarding the minor contracts that are pending publication on the Platform. The personnel of the General Secretariat can only select and publish or do nothing, and it is not possible to modify any field of the information sent to the Platform.

Regarding this point, on January 18 of this year, the Office of Supervision and Information of Expenditure of the Ministry of Economy, Finance and European Funds, General Intervention of the Government of Cantabria, was informed through the Systemic Integration Mailbox of the Public Sector Contracting Platform, about the implementation of a new functionality to obfuscate the NIFs of C/ Jorge Juan, 6

natural persons. The Government of Cantabria is implementing this, but it is not possible to apply it to previous announcements.

In light of the above, the staff of the General Secretariat of Culture, Tourism, and Sports has manually modified the tender announcement for the claimant's contract on the Public Sector Procurement Platform, obscuring the digits of the DNI, in compliance with data protection regulations. The corrected announcement is attached.

Furthermore, on this same date, the General Secretariat of Culture, Tourism, and Sports has sent a letter to the General Subdirector of Electronic Procurement Coordination of the Ministry of Finance requesting the removal of the general announcement from the publications area labeled as historical.

Regarding the fulfillment of the right to be forgotten through the Google form, this General Secretariat understands that it must be the claimant themselves who requests it. Upon consulting the form, it is established that the right to be forgotten must be requested directly by the affected person, and in the case of a request by a different person, it is necessary to confirm that there is legal authorization to do so, a circumstance that does not apply in the present case.

SEVENTH: On May 7, 2024, a resolution proposal was issued and received the same day by electronic means sent by the AEPD to the respondent, proposing that the Director of the Spanish Agency for Data Protection declare that the DEPARTMENT OF CULTURE, TOURISM, AND SPORTS OF THE GOVERNMENT OF CANTABRIA with NIF S3933002B has violated the provisions of Article 5.1.c) of the GDPR, as classified in Article 83.5 of the GDPR.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On April 4, 2023, the respondent published on the Public Sector Procurement Platform the announcement of the award of a contract where the name, surname, and full DNI of the claimant are stated, as confirmed by the report issued by the General Subdirectorate of Electronic Procurement Coordination on October 19, 2023.

SECOND: The respondent has communicated with the Office of Supervision and Information of Expenditure of the Department of Economy, Finance, and European Funds, General Intervention of the Government of Cantabria, through the Systemic Integration Mailbox of the Public Sector Procurement Platform, proposing the implementation of a new functionality to obscure the NIF of natural persons.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, the claimant states that on 04/04/23, the respondent published on the Public Sector Procurement Platform the announcement of the award of the contract.

In the aforementioned act, the name, surname, and full DNI of the claimant are included.

The respondent carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

"data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States.

In relation to these facts, it should also be noted that Organic Law 3/2018, of December 5, on Personal

Data Protection and Guarantee of Digital Rights, hereinafter the LOPDGDD, in its seventh additional provision, in its first section, regarding the identification of the interested parties in notifications through announcements and publications of administrative acts, states the following:

"1. When it is necessary to publish an administrative act that contains personal data of the affected party, the affected party shall be identified by their name and surname, adding four random numerical digits from the national identity document, foreign identity number, passport, or equivalent document. When the publication refers to a plurality of affected parties, these random digits must be alternated."

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When notification is made by means of announcements, particularly in the cases referred to in Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the affected party shall be identified exclusively by the complete number of their national identity document, foreign identity number, passport, or equivalent document. If the affected party does not possess any of the documents mentioned in the two preceding paragraphs, they shall be identified solely by their first and last names. Under no circumstances should the first and last names be published together with the complete number of the national identity document, foreign identity number, passport, or equivalent document.

III

Violation of Article 5.1 c) of the GDPR

Article 5 of the GDPR establishes that "personal data shall be:

- a) processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency');
- b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation');
- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');
- d) accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay ('accuracy');
- e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes of the processing of personal data; personal data may be stored for longer periods as long as they are processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the application of appropriate technical and organizational measures required by this Regulation to protect the rights and freedoms of the data subject ('storage limitation');
- f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality').

The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it ('accountability')."

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The responding party has contacted the Office of Supervision and Information of Expenditure of the Ministry of Economy, Finance, and European Funds, General Intervention of the Government of

Cantabria, through the Systemic Integration Mailbox of the Public Sector Procurement Platform, to incorporate a new functionality that allows for the anonymization of the NIF of individuals. However, as the responding party indicates, despite the implementations made, it is not possible to apply it to previous announcements.

Thus, when the announcement of the award of a contract is published on the Public Sector Procurement Platform, which includes the name, last names, and complete DNI of the claimant, the principle of data minimization is being violated, which requires that their processing be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed. It is considered that the responding party, by publishing on the Public Sector Procurement Platform the announcement of the award of a contract, which includes the name, last names, and complete DNI of the claimant, has violated Article 5.1 c) of the GDPR, as it is not necessary to indicate in the award announcement the name, last names, and complete DNI of the claimant.

IV

Sanction

In order to determine the administrative fine to be imposed, the provisions of Article 77 of the LOPDGDD regarding the regime applicable to certain categories of controllers or processors must be observed, indicating the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or processors:

- a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.
 - b) The judicial bodies.
 - c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.
 - d) The public bodies and entities of public law linked to or dependent on the Public Administrations.
 - e) The independent administrative authorities.
 - f) The Bank of Spain.
 - g) The public law corporations when the purposes of the processing relate to the exercise of public law powers.
 - h) The public sector foundations.
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- i) Public Universities.
 - j) Consortiums.
 - k) Parliamentary groups of the General Courts and the Autonomous Legislative Assemblies, as well as political groups of Local Corporations.

2. When the responsible parties or managers listed in section 1 commit any of the violations referred to in articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures to be adopted to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the responsible party or manager of the processing, to the body to which they hierarchically depend, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous section, the data protection authority shall also propose the initiation of disciplinary actions when there is sufficient evidence for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that apply.

Furthermore, when the violations are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible officer and shall order publication in the Official State Gazette or the corresponding autonomous gazette.

4. The resolutions related to the measures and actions referred to in the previous sections shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions related to the entities in section 1 of this article, with explicit indication of the identity of the responsible party or manager of the processing who committed the infringement.

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When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions shall be governed by its specific regulations.

V

Responsibility

Law 40/2015, of October 1, on the Legal Regime of the Public Sector, establishes in Chapter III regarding the "Principles of the Sanctioning Power," in article 28 under the heading "Responsibility," the following:

"1. Only individuals and legal entities may be sanctioned for acts constituting administrative violations, as well as, when a law recognizes them the capacity to act, groups of affected parties, unions and entities without legal personality, and independent or autonomous assets, that are found responsible for them by intent or negligence."

Considering the factors presented, for the purposes provided in article 64.2 b) of law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction corresponding to the acts that motivate the initiation of the procedure and its possible qualification would be an administrative fine.

However, in accordance with article 83.7 of the GDPR, and the provisions of article 77.2 of the LOPDGDD, due to the category of the subject allegedly responsible for the infringement, such sanction would be replaced by the declaration of the infringement.

In view of the above, it is hereby resolved:

FIRST: TO DECLARE that A.A.A., with NIF S3933002B, has infringed the provisions of Article 5.1.c) of the GDPR, an infringement classified in Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of article 77.5 of the LOPDGDD.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the

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the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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